

P O R T E R | S C O T T

A PROFESSIONAL CORPORATION

Chad S. Tapp, SBN 214898

ctapp@porterscott.com

Tyler J. O'Connell, SBN 346673

toconnell@porterscott.com

2180 Harvard Street, Suite 500

Sacramento, California 95815

TEL: 916.929.1481

FAX: 916.927.3706

Attorneys for Defendant,

CSAA INSURANCE EXCHANGE

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO,

Case No.: CGC-25-631802

Plaintiff,

v.

**REQUEST FOR JUDICIAL NOTICE IN
SUPPORT OF DEMURRER TO
PLAINTIFF'S FIRST AMENDED
COMPLAINT ("FAC")**

CSAA INSURANCE EXCHANGE; DOES
1 through 50,

Defendants.

DATE: MAY 13, 2026

TIME: 9:00 A.M.

DEPT: 302

Complaint Filed: December 23, 2025

Amended Complaint Filed: February 25, 2026

///

1 Defendant CSAA INSURANCE EXCHANGE (“Defendant”) hereby requests that this
2 Court take judicial notice of the following pursuant to California Evidence Code §§ 452, 453, and
3 California Code of Civil Procedure § 430.70:

4 1. Plaintiff’s First Amended Complaint in the instant action. (A true and correct copy
5 is attached to the Declaration of Tyler J. O’Connell as Exhibit A.)

6 2. Plaintiff’s operative First Amended Complaint in the related action,
7 contemporaneously filed with this action. That action is entitled *Rosario v. Abdelhalim, et al.*, San
8 Francisco County Superior Court Case No. CGC-25-631801). (A true and correct copy is attached
9 to the Declaration of Tyler J. O’Connell as Exhibit B.)

10 3. Register of Actions, in *Rosario v. Abdelhalim*, San Francisco County Superior Court
11 Case No. CGC-21-594102. (A true and correct copy is attached to the Declaration of Tyler J.
12 O’Connell as Exhibit C.)

13 4. Defendant’s Substitution of Defense Counsel, filed in *Rosario v. Abdelhalim*, San
14 Francisco County Superior Court Case No. CGC-21-594102. (A true and correct copy is attached
15 to the Declaration of Tyler J. O’Connell as Exhibit D.)

16 5. Defendant’s Motion in Limine # 6, filed in *Rosario v. Abdelhalim*, San Francisco
17 County Superior Court Case No. CGC-21-594102. (A true and correct copy is attached to the
18 Declaration of Tyler J. O’Connell as Exhibit E.)

19 6. Defendant’s Motion in Limine # 8, filed in *Rosario v. Abdelhalim*, San Francisco
20 County Superior Court Case No. CGC-21-594102. (A true and correct copy is attached to the
21 Declaration of Tyler J. O’Connell as Exhibit F.)

22 7. Defendant’s Motion in Limine # 17, filed in *Rosario v. Abdelhalim*, San Francisco
23 County Superior Court Case No. CGC-21-594102. (A true and correct copy is attached to the
24 Declaration of Tyler J. O’Connell as Exhibit G.)

25 8. Order re Trial Scheduling and Motions in Limine, filed in *Rosario v. Abdelhalim*,
26 San Francisco County Superior Court Case No. CGC-21-594102. (A true and correct copy is
27 attached to the Declaration of Tyler J. O’Connell as Exhibit H.)

28 ///

1 9. Plaintiff's Judgment Notwithstanding the Verdict, filed in *Rosario v. Abdelhalim*,
2 San Francisco County Superior Court Case No. CGC-21-594102. (A true and correct copy is
3 attached to the Declaration of Tyler J. O'Connell as Exhibit I.)

4 10. Plaintiff's Declaration in Support of Judgment Notwithstanding the Verdict, filed in
5 *Rosario v. Abdelhalim*, San Francisco County Superior Court Case No. CGC-21-594102. (A true
6 and correct copy is attached to the Declaration of Tyler J. O'Connell as Exhibit J.)

7 11. Defendant's Opposition to Plaintiff's Judgment Notwithstanding the Verdict, filed
8 in *Rosario v. Abdelhalim*, San Francisco County Superior Court Case No. CGC-21-594102. (A true
9 and correct copy is attached to the Declaration of Tyler J. O'Connell as Exhibit K.)

10 12. Plaintiff's Motion for New Trial, filed in *Rosario v. Abdelhalim*, San Francisco
11 County Superior Court Case No. CGC-21-594102. (A true and correct copy is attached to the
12 Declaration of Tyler J. O'Connell as Exhibit L.)

13 13. Defendant's Opposition to Plaintiff's Motion for New Trial and Mistrial, filed in
14 *Rosario v. Abdelhalim*, San Francisco County Superior Court Case No. CGC-21-594102. (A true
15 and correct copy is attached to the Declaration of Tyler J. O'Connell as Exhibit M.)

16 14. Order on Plaintiff's Post-Trial Motions, filed in *Rosario v. Abdelhalim*, San
17 Francisco County Superior Court Case No. CGC-21-594102. (A true and correct copy is attached
18 to the Declaration of Tyler J. O'Connell as Exhibit N.)

19 15. Plaintiff's Prayer to Judge East re: Motion for Disqualification of Judge Wong, filed
20 in *Rosario v. Abdelhalim*, San Francisco County Superior Court Case No. CGC-21-594102. (A true
21 and correct copy is attached to the Declaration of Tyler J. O'Connell as Exhibit O.)

22 16. Order Denying Plaintiff's "Prayer" and 170.6, filed in *Rosario v. Abdelhalim*, San
23 Francisco County Superior Court Case No. CGC-21-594102. (A true and correct copy is attached
24 to the Declaration of Tyler J. O'Connell as Exhibit P.)

25 17. Plaintiff's Notice of Appeal, filed in *Rosario v. Abdelhalim*, San Francisco County
26 Superior Court Case No. CGC-21-594102. (A true and correct copy is attached to the Declaration
27 of Tyler J. O'Connell as Exhibit Q.)

28 ///

1 18. Plaintiff's Notice Designating Record on Appeal, filed in *Rosario v. Abdelhalim*, San
2 Francisco County Superior Court Case No. CGC-21-594102. (A true and correct copy is attached
3 to the Declaration of Tyler J. O'Connell as Exhibit R.)

4 19. Defendant's Notice of Entry of Judgment, filed in *Rosario v. Abdelhalim*, San
5 Francisco County Superior Court Case No. CGC-21-594102. (A true and correct copy is attached
6 to the Declaration of Tyler J. O'Connell as Exhibit S.)

7 20. Plaintiff's *Original* Complaint in the instant action. (A true and correct copy is
8 attached to the Declaration of Tyler J. O'Connell as Exhibit T.)

9 Pursuant to Evidence Code section 453, Defendant provided Plaintiff with sufficient notice to
10 meet its request that the Court take judicial notice of the above-referenced statutory records, by way
11 of Defendant's filings in this case. Defendant has also furnished the Court with sufficient information
12 to enable it to take the judicial notice of the matter. The pleadings and prior meet-and-confer efforts
13 put Plaintiff on notice that these Code provisions are at issue in this case.

14
15
16 Dated: April 13, 2026

PORTER SCOTT
A PROFESSIONAL CORPORATION

Tyler J. O'Connell

17
18 By _____
19 Chad S. Tapp
20 Tyler J. O'Connell
21 Attorneys for Defendant
22 CSAA INSURANCE EXCHANGE
23
24
25
26
27
28

1 ***Franciscus Dylan Rosario v. CSAA Insurance Exchange; et al.***
2 ***San Francisco County Superior Court Case No.: CGC-25-631802***

3 **PROOF OF SERVICE**

4 At the time of service, I was over 18 years of age and not a party to this action. My business
5 address is 2180 Harvard Street, Suite 500, Sacramento, California 95815.

6 On April 13, 2026, I served the following document: **REQUEST FOR JUDICIAL**
7 **NOTICE IN SUPPORT OF DEMURRER TO PLAINTIFF'S FIRST AMENDED**
8 **COMPLAINT (FAC").**

9 X	BY REGISTERED/CERTIFIED MAIL, RETURN RECEIPT REQUESTED: I caused to be served 10 the above referenced document(s) by registered or certified mail, return receipt requested, with the United 11 States Postal Service, in a sealed envelope with postage fully prepaid.
12	BY PERSONAL SERVICE: I caused such document to be personally delivered to the person(s) addressed 13 below. (1) For a party represented by an attorney, delivery was made to the attorney or at the attorney's 14 office by leaving the documents, in an envelope or package clearly labeled to identify the attorney being 15 served, with a receptionist or an individual in charge of the office, between the hours of nine in the morning 16 and five in the evening. (2) For a party, delivery was made to the party or by leaving the documents at the 17 party's residence with some person not younger than 18 years of age between the hours of eight in the morning and six in the evening.
18	BY OVERNIGHT DELIVERY: I enclosed the documents in an envelope or package provided by an overnight delivery carrier and addressed to the person(s) listed below. I placed the envelope or package for collection and overnight delivery at my office or a regularly utilized drop box of the overnight delivery carrier.
19	BY ELECTRONIC TRANSMISSION: By electronically serving the document(s) to the electronic mail address set forth below on this date before 11:59 p.m. pursuant to Code of Civil Procedure section 1010.6(a)(2), (4) and (5).

20 Addressed as follows:

21 **PLAINTIFF, IN PRO PER**

22 Franciscus Dylan Rosario
23 7624 Melody Drive
24 Rohnert Park, CA 94928
25 soltrinox@gmail.com

26 I declare under penalty of perjury under the laws of the State of California that the foregoing
27 is true and correct. Executed on Sacramento, California on April 13, 2026.

28 **Monique Schubert**
Monique Schubert